

Tentative Rulings for June 23, 2026
Department 503

For any matter where an oral argument is requested and any party to the hearing desires a remote appearance, such request must be timely submitted to and approved by the hearing judge. In this department, the remote appearance will be conducted through Zoom. If approved, please provide the department's clerk a correct email address. (CRC 3.672, Fresno Sup.C. Local Rule 1.1.19)

There are no tentative rulings for the following cases. The hearing will go forward on these matters. If a person is under a court order to appear, he/she must do so. Otherwise, parties should appear unless they have notified the court that they will submit the matter without an appearance. (See California Rules of Court, rule 3.1304(c).) *The above rule also applies to cases listed in this "must appear" section.*

The court has continued the following cases. The deadlines for opposition and reply papers will remain the same as for the original hearing date.

24CECG04794 *Harout Torosian v. BMW of North America, LLC* is continued to Thursday, June 25, 2026, at 3:30 p.m. in Department 503.

22CECG00003 *Timothy O'Neil v. Bertha Warren* is continued to Tuesday, August 4, 2026, at 3:30 p.m. in Department 503.

(Tentative Rulings begin at the next page)

Tentative Rulings for Department 503

Begin at the next page

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Tentative Ruling

Re: ***Mendoza v. Ameriguard Security Services, Inc.***
Superior Court Case No. 23CECG03540

Hearing Date: June 23, 2026 (Dept. 503)

Motion: Plaintiffs' Motion for Preliminary Approval of Class Action Settlement

Tentative Ruling:

To deny without prejudice.

Explanation:

Certification of Class for Settlement

Settlements preceding class certification are scrutinized more carefully to make sure that absent class members' rights are adequately protected, although there is less scrutiny of manageability issues. (*Wershba v. Apple Computer, Inc.* (2001) 91 Cal.App.4th 224, 240; see *Dunk v. Ford Motor Co.* (1996) 48 Cal.App.4th 1794, 1803, fn. 9, 19.a) The trial court has a "fiduciary responsibility" as the guardian of the absentee class members' rights to decide whether to approve a settlement of a class action. (*Luckey v. Superior Court* (2014) 228 Cal.App.4th 81, 95.)

A precertification settlement may stipulate that a defined class be conditionally certified for settlement purposes. The court may make an order approving or denying certification of a provisional settlement class after the preliminary settlement hearing. (Cal. Rules of Court, rule 3.769(d).) Before the court may approve the settlement, however, the settlement class must satisfy the normal prerequisites for a class action. (*Amchem Products, Inc. v. Windsor* (1997) 521 US 591, 625-627.)

"Class certification requires proof (1) of a sufficiently numerous, ascertainable class, (2) of a well-defined community of interest, and (3) that certification will provide substantial benefits to litigants and the courts, i.e., that proceeding as a class is superior to other methods. In turn, the community of interest requirement embodies three factors: (1) predominant common questions of law or fact; (2) class representatives with claims or defenses typical of the class; and (3) class representatives who can adequately represent the class." (*In re Tobacco II Cases* (2009) 46 Cal.4th 298, 313.)

Plaintiffs bear the burden of establishing the propriety of class treatment with admissible evidence. (*Richmond v. Dart Industries, Inc.* (1981) 29 Cal.3d 462, 470 [trial court's ruling on certification supported by substantial evidence generally not disturbed on appeal]; *Lockheed Martin Corp. v. Superior Court*, *supra*, 29 Cal.4th at pp. 1107-1108 [plaintiff's burden to produce substantial evidence].)

Counsel represents defendant has represented that there are approximately 268 class members and 164 aggrieved employees. (DiGiacco Decl., ¶ 5.) However, no

admissible evidence is submitted as to this number. Nor is there any evidence of ascertainability, such as a showing that the class members are identifiable from defendant's own records. A conclusory statement to this effect in the points and authorities is insufficient. In a future motion for preliminary approval, a declaration from defendant should be submitted, establishing the number of class members and ascertainability.

Under the community of interest requirement, the class representative must be able to represent the class adequately. (*Caro v. Procter & Gamble* (1993) 18 Cal.App.4th 644, 669.) "[I]t has never been the law in California that the class representative must have identical interests with the class members . . . The focus of the typicality requirement entails inquiry as to whether the plaintiff's individual circumstances are markedly different or whether the legal theory upon which the claims are based differ from that upon which the claims of the other class members will be based." (*Classen v. Weller* (1983) 145 Cal.App.3d 27, 46.)

Usually, in wage and hour class actions, the distinctive feature that permits class certification is that the employees have the same job title or perform similar jobs, and the employer treats all in that discrete group in the same allegedly unlawful fashion. In *Brinker Restaurant v. Superior Court* (2012) 53 Cal.4th 1004, 1017, "no evidence of common policies or means of proof was supplied, and the trial court therefore erred in certifying a subclass."

Plaintiffs make no effort to establish community of interest or typicality. Plaintiffs submit declarations in support of the motion, but the declarations are solely designed to support the service payment requests. Again, conclusory statements in the points and authorities are insufficient.

The adequacy of representation component of the community of interest requirement for class certification comes into play when the party opposing certification brings forth evidence indicating widespread antagonism to the class suit. " 'The adequacy inquiry ... serves to uncover conflicts of interest between named parties and the class they seek to represent.' [Citation.] '... To assure "adequate" representation, the class representative's personal claim must not be inconsistent with the claims of other members of the class. [Citation.]" (*J.P. Morgan & Co., Inc. v. Superior Court* (2003) 113 Cal.App.4th 195, 212.)

"[T]he adequacy inquiry should focus on the abilities of the class representative's counsel and the existence of conflicts between the representative and other class members." (*Caro v. Procter & Gamble Co.* (1993) 18 Cal.App.4th 644, 669.) This consideration is satisfied, as counsel has substantial class action experience.

Settlement Approval

"[I]n the final analysis it is the Court that bears the responsibility to ensure that the recovery represents a reasonable compromise, given the magnitude and apparent merit of the claims being released, discounted by the risks and expenses of attempting to establish and collect on those claims by pursuing litigation. The court has a fiduciary responsibility as guardians of the rights of the absentee class members when deciding

whether to approve a settlement agreement." (*Kullar v. Foot Locker Retail, Inc.* (2008) 168 Cal.App.4th 116, 129.) "[T]o protect the interests of absent class members, the court must independently and objectively analyze the evidence and circumstances before it in order to determine whether the settlement is in the best interests of those whose claims will be extinguished ... [therefore] the factual record must be before the ... court must be sufficiently developed." (*Id.* at p. 130.)

Clark v. America Residential Services (2009) 175 Cal.App.4th 785 vacated approval of a class settlement coupled with class certification, an award of \$25,000 each to two named plaintiffs, and more. The problem was that the plaintiffs presented "no evidence regarding the likelihood of success on any of the 10 causes of action, or the number of unpaid overtime hours estimated to have been worked by the class, or the average hourly rate of pay, or the number of meal periods and rest periods missed, or the value of minimum wage violations, and so on." (*Id.* at p. 793.)

Counsel provides a very generic and generalized discussion of potential risks of moving forward to trial and class certification. (DiGiacco Decl., ¶¶ 13-15.) These generalized statements could be made of every class action. There is no showing of true analysis of the actual strengths and weaknesses of the claims.

Counsel provides valuations for each of the claims. (DiGiacco Decl., ¶¶ 16-23.) These valuations are lacking clear explanations for why these valuations are accurate or reasonable. For example, with regards to the claim for unpaid wages and overtime, counsel explains, "Based on the data provided by Defendant, Class Members were underpaid for an average of 10 minutes per shift, across 14,000 workweeks for 268 employees totaling a minimum wage liability of \$179,662.22. Further, a total of 80% of all non-exempt employees suffered from a regular rate violation, and 55% of all pay periods included a regular rate of pay violation, resulting in an estimated underpayment of \$18,566.00, including interest due, plus reasonable attorneys' fees and costs. Taking into account the various risks associated with litigation, including but not limited to, proving liability and obtaining class certification, the appropriate discounted valuation for these claims is \$20,485.16." (DiGiacco Decl., ¶ 16.) There is no explanation how counsel came to these violation rates, and whether they are supported by the documentation obtained from defendant.

Similarly, with regards to the meal period claim, counsel states, "Assuming that it could be proven that 15% of all recorded first meal periods were recorded after the end of the fifth hour of work, and 5% of all shifts were shorter than 30 minutes, Defendant would be liable for \$750,148.00 in unpaid meal period premiums and interest due, plus reasonable attorney's fees and costs. Taking into account the various risks associated with litigation, including but not limited to, proving liability and obtaining class certification, the appropriate discounted valuation for these claims is \$77,521.27." (DiGiacco Decl., ¶ 17.) It is unclear where these percentages came from, or how they provide a reliable basis for valuing the claim. Valuations of the other claims are also based on unexplained assumptions about what plaintiffs might prove. (See DiGiacco Decl., ¶¶ 18 ["Assuming what Plaintiffs and other non-exempt employees uniformly report can be proven that they were often unable to take 2-3 uninterrupted rest periods during their workweek ..."], 20 ["Assuming that these individuals were not timely paid all wages due to them upon termination ..."], 21 ["If Plaintiffs proved that Defendant willfully failed

to fully reimburse business-related expenses ..."]. Unsupported assumptions and guesswork do not provide a basis for valuing the claims asserted. This appears to be little more than guesswork. There is no valuation of the UCL claim. (DiGiacco Decl., ¶¶ 22-23.)

Nor can the court preliminarily approve the requested award of attorneys' fees and costs. Plaintiffs' counsel seek \$50,000 in attorneys' fees, which is 1/3 of the total gross settlement, plus costs of up to \$30,000. 1/3 is within the range of fees that have been approved by other courts in class actions, which frequently approve fees based on a percentage of the common fund. (*City & County of San Francisco v. Sweet* (1995) 12 Cal.4th 105, 110-11; *Quinn v. State* (1975) 15 Cal.3d 162, 168; see also *Apple Computer, Inc. v. Superior Court* (2005) 126 Cal.App.4th 1253, 1270; *Lealao v. Beneficial California, Inc.* (2000) 82 Cal.App.4th 19, 26.)

While it is true that courts have found fee awards based on a percentage of the common fund are reasonable, the California Supreme Court has also found that the trial court has discretion to conduct a lodestar "cross-check" to double check the reasonableness of the requested fees. (*Laffitte v. Robert Half Intern. Inc.* (2016) 1 Cal.5th 480, 503-504 [although class counsel may obtain fees based on a percentage of the class settlement, courts may also perform a lodestar cross-check to ensure that the fees are reasonable in light of the number of hours worked and the attorneys' reasonable hourly rates].)

The court prefers to do a lodestar analysis as a cross-check on the reasonableness of the fees. Counsel provides no information whatsoever to enable the court to do this analysis. Nor is any documentation provided to show that the \$30,000 requested for costs is reasonable.

The motion seeks preliminary approval of \$7,500 enhancement payments to both named plaintiffs – Namoi Mendoza and Heather Alarcon – as well as for Kahari Theron who claims to be a plaintiff. To the court's knowledge Kahari is not a named plaintiff in either consolidated action. The requested enhancement payments for Mendoza and Alarcon are excessive. Plaintiffs submitted declarations with generalized information about their services to the class. Alarcon estimates spending 10-12 hours in total in service to the class and working on this case (Alarcon Decl., ¶ 10), and Mendoza 35-40 hours (Mendoza Decl., ¶ 8). Alarcon's minimal services do not appear to warrant more than a \$1,500 enhancement. The court will preliminarily approve \$5,000 for Mendoza.

The settlement provides that class administrator ILYM Group will be paid \$7,500 to administer the settlement. No declaration from ILYM Group is submitted, nor is there information about any other bids obtained from other settlement administrators. Insufficient information is provided to approve this allocation.

Pursuant to California Rules of Court, rule 3.1312(a), and Code of Civil Procedure section 1019.5, subdivision (a), no further written order is necessary. The minute order

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Tentative Ruling

Re: ***La Jolla Group II, Management, Inc. v. Noel et al.***
Superior Court Case No. 22CECG00339

Hearing Date: June 23, 2026 (Dept. 503)

Motion: By Plaintiff La Jolla Group, II, Management, Inc. to Correct Judgment

Tentative Ruling:

To grant. (Code Civ. Proc., § 473, subd. (d).) To sign the proposed corrected judgment.

Explanation:

On December 6, 2023, default judgment was entered in favor of plaintiff La Jolla Group II, Management, Inc. ("Plaintiff"). Plaintiff now seeks to correct the December 6, 2023, judgment to add an unintentionally omitted defendant under Code of Civil Procedure section 473 with little to no comment as to its application.

Ordinarily, a court under Code of Civil Procedure section 473 has the authority to correct only clerical errors. (Code Civ. Proc., § 473, subd. (d).) The court cannot amend a judgment to substantially modify or materially alter parties' rights. (E.g., *Rochin v. Pat Johnson Mfg. Co.* (1998) 67 Cal.App.4th 1228, 1237-1238.) It does not matter that a court or a moving party acted under a mistake as long as the court was performing the act it intended to perform. (*Conservatorship of Christopher B.* (2015) 240 Cal.App.4th 809, 816 citing *Smith v. Superior Court* (1981) 115 Cal.App.3d 285, 292.) Correcting a judicial error, as opposed to a clerical error, exceeds the court's jurisdiction and would be void and ineffective. (*Conservatorship of Christopher B.*, *supra*, 240 Cal.App.4th at p. 817.) Judicial errors in a final judgment cannot be corrected except in accordance with statutory procedures or on the limited grounds available for collateral attack. (*People v. Nesbitt* (2010) 191 Cal.App.4th 227, 241.) The difference between a judicial error and a clerical error depends only on whether the error was the deliberate result of judicial reasoning and determination. (*Rochin v. Pat Johnson Mfg. Co.*, *supra*, 67 Cal.App.4th at p. 1238.)

Here, Plaintiff submits only that its counsel inadvertently failed to include Bernice Webb and her heirs in the December 6, 2023, judgment. As noted above, the question does not consider mistake or inadvertence. Rather the question is whether the judgment entered was the deliberate result of judicial reasoning and determination.

Ordinarily, the motion would be denied without prejudice due to the failure of the burden of the moving party to demonstrate applicable relief. However, due to the court's severely impacted docket, the court's review its own docket. On the court's own review, the court finds that there was a clerical error. On August 18, 2023, default was duly entered as to the omitted defendants along with the existing judgment-debtors. Likewise, the request for court judgment, filed October 3, 2023, sought entry of default judgment

against the omitted defendants along with the existing judgment-debtors. It would thus appear that the omission of the omitted defendants was clerical, and the court's intention in approving the application for default judgment was to enter judgment as to all of the omitted defendants and existing judgment-debtors. Accordingly, the court's own motion is granted. The proposed amended judgment filed April 15, 2026, shall be entered as sought.

Pursuant to California Rules of Court, rule 3.1312(a), and Code of Civil Procedure section 1019.5, subdivision (a), no further written order is necessary. The minute order adopting this tentative ruling will serve as the order of the court and service by the clerk will constitute notice of the order.

Tentative Ruling

Issued By: JS **on** 6/22/2026.
(Judge's initials) (Date)

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Tentative Ruling

Re: **Quality Furniture N Home Design, Inc. v. Vie-Del Company et al.**

Superior Court Case No. 24CECG02953

Hearing Date: June 23, 2026 (Dept. 503)

Motion: By Plaintiff for Leave to File a Second Amended Complaint

Tentative Ruling:

To grant plaintiff's motion for leave to file a second amended complaint. (Code Civ. Proc. § 473.) Plaintiff shall file their second amended complaint within 10 days of the date of service of this order. All new allegations shall be in **boldface**.

Explanation:

" 'Code of Civil Procedure section 473, which gives the courts power to permit amendments in furtherance of justice, has received a very liberal interpretation by the courts of this state.... In spite of this policy of liberality, a court may deny a good amendment in proper form where there is unwarranted delay in presenting it.... On the other hand, where there is no prejudice to the adverse party, it may be an abuse of discretion to deny leave to amend.' [Citation.] 'In the furtherance of justice, trial courts may allow amendments to pleadings and if necessary, postpone trial.... Motions to amend are appropriately granted as late as the first day of trial ... or even during trial ... if the defendant is alerted to the charges by the factual allegations, no matter how framed ... and the defendant will not be prejudiced.' [Citation.]" (*Rickley v. Goodfriend* (2013) 212 Cal.App.4th 1136, 1159.)

"While a motion to permit an amendment to a pleading to be filed is one addressed to the discretion of the court, the exercise of this discretion must be sound and reasonable and not arbitrary or capricious. And it is a rare case in which 'a court will be justified in refusing a party leave to amend his pleadings so that he may properly present his case.' If the motion to amend is timely made and the granting of the motion will not prejudice the opposing party, it is error to refuse permission to amend and where the refusal also results in a party being deprived of the right to assert a meritorious cause of action or a meritorious defense, it is not only error but an abuse of discretion." (*Morgan v. Superior Court of Cal. In and For Los Angeles County* (1959) 172 Cal.App.2d 527, 530, internal citations omitted.)

On a noticed motion for leave to amend a pleading, requirements set forth by California Rules of Court, rule 3.1324 must be followed. The motion must include a copy of the proposed amendment or an amended pleading. (Cal. Rules of Court, rule 3.1324(a)(1), (c).) It must also include a declaration stating the following:

- (1) The effect of the amendment;
- (2) Why the amendment is necessary and proper;

- (3) When the facts giving rise to the amended allegations were discovered;
and
- (4) The reasons why the request for amendment was not made earlier.

(Cal. Rules of Court, rule 3.1324(b).)

Here, plaintiff Quality Furniture N Home Design, Inc. ("Plaintiff") seeks leave to file the second amended complaint to assert a claim for fraud and rescission for agreements with defendant Vie-Del Company ("Defendant") for the same property as stated in the previous operative complaint. The proposed second amended complaint is attached to the declaration in support of the motion. Defendant submitted an opposition to the motion arguing that the amendment is prejudicial to Defendant, that the motion does not meet the requirements of Rules of Court, rule 3.1324(b), and that the cause of action would not be filed within the statute of limitations. The court has considered these arguments and determined that the prejudice that may result from the amendment is not such that should deprive a plaintiff their right to amend their pleading. Plaintiff's motion complies with Rules of Court, rule 3.1324(b), as the declaration by Plaintiff's counsel states that the failure to include the cause of action at the time the First Amended Complaint was filed was due to counsel's failure and mistake. The other pleading challenges raised by Defendant would be premature.

Therefore, the court grants the motion for leave to file the second amended complaint.

Pursuant to California Rules of Court, rule 3.1312(a), and Code of Civil Procedure section 1019.5, subdivision (a), no further written order is necessary. The minute order adopting this tentative ruling will serve as the order of the court and service by the clerk will constitute notice of the order.

Tentative Ruling

Issued By: JS **on** 6/22/2026.
(Judge's initials) (Date)